

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601999	QUILO VS ROSS STORES, INC.	DEMURRER

Tentative Ruling:

Moving party: Defendant Ross Stores, Inc.
Responding party: Plaintiff Jean Quilo

This is an employment dispute. In 2018, Plaintiff Jean Quilo (“Plaintiff”) was hired by Defendant Ross Stores, Inc. (“Ross”) as a warehouse associate at its Moreno Valley location. (Compl. ¶ 7.) In November 2022, Plaintiff was injured on the job while lifting and carrying heavy boxes. (*Id.* at ¶ 8.) Plaintiff sought medical treatment and filed a workers’ compensation claim. (*Id.*) Plaintiff alleges that her performance had been rated “excellent” prior to the accident, and that after a period of convalescence she was released to return to work, ready, willing, and able to perform her duties with or without accommodation. (*Id.* at ¶¶ 8, 14.)

In December 2023, Ross allegedly did not engage in a good faith interactive process but instead determined unilaterally that Plaintiff’s restrictions were permanent and no reasonable accommodation was available. (*Id.* at ¶ 8.) Plaintiff alleges that Ross already had copies of her medical records and reports through its workers’ compensation counsel. (*Id.* at ¶ 9.) On December 21, 2023, Ross terminated Plaintiff. (*Id.* at ¶ 10.) On June 4, 2025, Plaintiff filed an administrative complaint with the California Department of Fair Employment and Housing (“DFEH”), now known as the Civil Rights Division (“CRD”). (*Id.* at ¶ 11.)

On April 1, 2026, within one year of receiving a right to sue letter, Plaintiff filed her Complaint, asserting five causes of action against Ross: (1) disability discrimination in violation of the Fair Employment and Housing Act (“FEHA”); (2) retaliation under FEHA; (3) wrongful termination in violation of public policy; (4) intentional infliction of emotional distress (“IIED”); and (5) Negligent Infliction of Emotional Distress (“NIED”). Plaintiff seeks general, special, and punitive damages, back and front pay, attorneys’ fees, costs, and prejudgment interest.

Ross now demurs to the **third** (wrongful termination in violation of public policy), **fourth** (IIED), and **fifth** (NIED) causes of action as barred on their face by the two-year statute of limitations under CCP § 335.1. According to Ross, Plaintiff was terminated on December 21, 2023, so the limitations period expired December 21, 2025, yet the Complaint was not filed until April 1, 2026, roughly four months late, and pleads no facts supporting tolling. Ross argues that the NIED claim independently fails because NIED is not a standalone tort and the Complaint alleges no duty independent of the employment relationship, merely repackaging the FEHA/termination allegations. Ross further contends that the NIED claim is barred by workers’ compensation exclusivity because the alleged injuries arise out of and in the course of employment. Ross asks the Court to sustain the demurrer without leave to amend.

In opposition, Plaintiff references judicial notice of the WCAB proceedings (Case Number ADJ 18801191) (Pl.’s Opp. at 11:7–11), but did not file a separate Request for Judicial Notice as required by CRC Rule 3.1113(l), and did not submit the underlying WCAB documents. The bare reference in the opposition is insufficient to place the tolling facts before the Court on demurrer.

Plaintiff concedes the basic arithmetic but argues Ross's calculation ignores equitable tolling during her workers' compensation proceedings. According to Plaintiff, she filed her Workers' Compensation Appeals Board ("WCAB") Application on January 30, 2024 (about 40 days after termination), the WCAB proceeding remained pending roughly fifteen months until the April 28, 2025, Order Approving Compromise and Release, she filed her DFEH/CRD complaint on June 4, 2025, and filed this action on April 1, 2026, well within the tolled period. Plaintiff argues that equitable tolling applies when a plaintiff reasonably and in good faith pursues an alternative remedy, and a workers' compensation proceeding can toll limitations on related employment claims. She argues that all three tolling elements—timely notice, lack of prejudice, and reasonable good faith conduct—are satisfied because Ross was the employer, participated in the WCAB proceeding, and received Plaintiff's medical records through its workers' compensation counsel. On the NIED/workers' compensation exclusivity point, Plaintiff argues that where an employer's conduct implicates FEHA and public policy (disability discrimination, failure to accommodate, failure to engage in the interactive process), it falls outside the compensation bargain and is not preempted. At minimum, Plaintiff requests leave to amend to expressly plead the equitable tolling facts.

In reply, Ross argues that Plaintiff cannot rescue her claims through equitable tolling facts as they appear nowhere in the Complaint or the pre-filing meet and confer and are unsupported by any request for judicial notice. Even considering the extra pleading facts, Ross contends Plaintiff cannot satisfy any of the three equitable tolling elements. Ross argues that the workers' compensation proceeding here was limited to a physical industrial injury and did not put Ross on notice of the wrongful termination, IIED, or NIED theories; that Plaintiff makes no showing of lack of prejudice; and that Plaintiff, represented by counsel throughout, offers no explanation for the roughly eleven months of inactivity between the April 28, 2025 WCAB Order and the April 1, 2026 filing of this action. Ross also argues that Plaintiff's tolling theory is internally contradictory as to the NIED claim, because if the WCAB proceeding served as an alternative remedy for the same emotional distress injuries, workers' compensation exclusivity bars the civil claim, and if it did not, tolling fails. Ross urges the Court to sustain the demurrer without leave to amend as to all three causes of action.

Meet and Confer

Ross satisfied its meet and confer requirement via telephone in accordance with CCP § 430.41(a), and filed an appropriate declaration in accordance with CCP § 430.41(a)(3). (*See* Rugo Decl. ¶ 4.)

Analysis

1. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (CCP § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Sup. Ct.* (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (*Id.*) The only issue involved in a demurrer hearing is whether the complaint, as

it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

2. Wrongful Termination in Violation of Public Policy (3rd Cause of Action)

A wrongful termination claim in violation of public policy is subject to two-year limitations period under CCP § 335.1. (CCP § 335.1; *see Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1382 [two-year limitation under CCP § 335.1 applies to common law tort cause of action for wrongful termination in violation of public policy].) A wrongful termination claim accrues at the time of actual termination because the statute of limitations begins to run on the date the employment is actually terminated. (*Romano v. Rockwell Int'l, Inc.* (1996) 14 Cal.4th 479, 484.)

Here, Ross terminated Plaintiff on December 21, 2023. (Compl. ¶ 10.) The Complaint was filed on April 1, 2026. Ross contends that, because Plaintiff did not file her Complaint until April 1, 2026, which is more than four months after the limitations period had run, her wrongful termination claim is time-barred.

Plaintiff responds with an equitable tolling argument based on her workers' compensation proceeding. Plaintiff asserts that she filed her WCAB Application on January 30, 2024, approximately five weeks after her termination, and that the workers' compensation proceeding remained pending until April 28, 2025, when the WCAB issued its Order Approving Compromise and Release. (Pl.'s Opp. 2:13–19, 3:27–4:2, 8:27–28, 11:7–11.)

The equitable tolling doctrine operates to “suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness.” (*McDonald v. Antelope Valley Cmty. College Dist.* (2008) 45 Cal.4th 88, 99.) Equitable tolling reflects the principle that “[w]hen an injured person has several legal remedies and, reasonably and in good faith, pursues one,” the limitations period on the alternative remedy may be tolled. (*Id.* at 100 [internal quotation marks & quotation omitted].) A plaintiff may establish equitable tolling by satisfying three elements: timely notice, lack of prejudice to the defendant, and reasonable and good faith conduct on the part of the plaintiff. (*Id.* at 102.)

The California Supreme Court has held that “the deadline for filing an administrative claim under [FEHA] could be tolled while a plaintiff is voluntarily pursuing alternate remedies.” (*Brome v. Cal. Highway Patrol* (2020) 44 Cal.App.5th 786, 795 [quoting *McDonald v. Antelope Valley Community Coll. Dist.* (2008) 45 Cal.4th 88, 106].) The Court of Appeal in *Brome* held that “the filing of the [workers'] compensation claim could equitably toll the one-year deadline for filing [the] discrimination claim with the [DFEH/CRD].” (*Id.*) “The test for equitable tolling contains no requirement that the legal claims themselves be identical but instead focuses on whether the facts are similar enough that an investigation of one claim will allow collection and preservation of evidence concerning the other.” (*Id.* at 796.)

As Ross correctly argues, the Complaint itself pleads no facts supporting equitable tolling. The January 30, 2024 WCAB Application, Ross's participation in the workers' compensation proceeding, the April 28, 2025, Order Approving Compromise and Release, and the factual overlap between the workers' compensation proceeding and this action are set forth in Plaintiff's Opposition rather than in the Complaint (Pl.'s Opp. 2:13–19, 3:27–4:2, 8:27–28, 11:7–11), and are

not the subject of any request for judicial notice. On the current pleading, the third cause of action is therefore time-barred on its face.

That said, Plaintiff has identified a facially viable equitable tolling theory. If the limitations clock was suspended beginning January 30, 2024 and resumed on April 28, 2025, the limitations period would have been suspended for approximately 454 days. Approximately 40 days elapsed between Plaintiff's termination and the January 30, 2024 filing of her WCAB Application, leaving approximately 690 days remaining in the statutory period (730 minus the 40 days that expired before the WCAB Application was filed). The resulting limitations period would extend beyond the April 1, 2026 filing date. The *Brome* court concluded that even an eleven-month period following resolution of a workers' compensation claim did not establish lack of good faith as a matter of law, and Plaintiff here proceeded more promptly than the *Brome* plaintiff by filing her DFEH/CRD complaint approximately five weeks after the WCAB order. (*Brome*, *supra*, 44 Cal.App.5th at 798.) Whether equitable tolling ultimately applies, including whether the scope of the workers' compensation proceeding sufficed to give Ross timely notice of the wrongful termination theory, presents factual questions not properly resolved on demurrer. In light of the strong policy favoring resolution on the merits, Plaintiff is given the opportunity to plead her tolling facts.

The demurrer to the third cause of action therefore be **SUSTAINED WITH LEAVE TO AMEND**.

3. Fourth Cause of Action: Intentional Infliction of Emotional Distress

An IIED claim is subject to a two-year statute of limitations. (CCP § 335.1; *see Wassmann v. S. Orange Cnty. Cmty. Coll. Dist.* (2018) 24 Cal.App.5th 825, 852–53.) An IIED claim accrues, and the statute of limitations begins to run, once the plaintiff suffers severe emotional distress as a result of the defendant's conduct. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 889 [citing *Murphy v. Allstate Ins.* (1978) 83 Cal.App.3d 38, 50–51].)

Plaintiff alleges that her employment with Ross ended on December 21, 2023. (Compl. ¶ 10.) She pleads no facts suggesting any alleged wrongful or outrageous conduct by Ross resulting in claimed severe emotional distress occurred after her termination date. Under the basic limitations rule, the IIED claim would be time-barred.

The same equitable tolling analysis applicable to the wrongful termination claim applies equally to the IIED claim. The Complaint alleges not merely an isolated personnel decision but a course of conduct involving Plaintiff's disability, medical restrictions, failure to accommodate, failure to engage in the interactive process, and ultimate termination. (*Id.* at ¶¶ 8, 10, 13, 14.) This course of conduct was known to Ross through the workers' compensation proceeding. (*Id.* at ¶¶ 9, 13.) If the workers' compensation proceeding tolled the limitations period from January 30, 2024 through April 28, 2025, the April 1, 2026 filing would be timely.

As with the third cause of action, however, the tolling facts appear only in the Opposition, not in the Complaint, and the pleading as it stands does not allege the WCAB Application, its pendency, the Order Approving Compromise and Release, or the factual overlap sufficient to trigger equitable tolling. Because a demurrer tests only the face of the pleading, the IIED claim as pleaded is time-barred.

The demurrer to the fourth cause of action is therefore **SUSTAINED WITH LEAVE TO AMEND**.

4. Fifth Cause of Action: Negligent Infliction of Emotional Distress

a. Statute of Limitations

NIED claims are subject to a two-year statute of limitations. (CCP § 335.1.) Ross contends that the fifth cause of action for NIED is time-barred. For the same reasons set forth above with respect to the third and fourth causes of action, the Complaint on its face pleads no equitable tolling facts, and the NIED claim as pleaded is time-barred. The demurrer therefore is **SUSTAINED WITH LEAVE TO AMEND** on statute of limitations grounds, in addition to the further grounds set forth below.

b. Failure to Plead an Independent Duty and Workers' Compensation Exclusivity

Ross next argues that California does not recognize NIED as a standalone tort and that Plaintiff was therefore required to plead facts establishing a duty of care owed by Ross separate and apart from the obligations arising out of the employment relationship or any other statutory source. Ross contends that the Complaint simply reincorporates the same employment related allegations underlying the FEHA claims—the termination and the resulting emotional distress—without ever identifying a distinct factual or legal basis for the NIED claim. Because the alleged injuries arise from an employment decision, Ross argues that the claim falls within the Workers' Compensation Act's exclusivity provisions, which apply to NIED claims.

Plaintiff does not affirmatively identify an independent duty. She acknowledges that NIED is not an independent tort but is analyzed under ordinary negligence principles, and she asks only that, to the extent the Court finds she has not sufficiently alleged duty, breach, causation, or damages, she be permitted to amend. On exclusivity, Plaintiff invokes the public policy carve-out, arguing that where an employer's conduct implicates substantial public policy interests, those interests fall outside the compensation bargain, and that if the Complaint states viable FEHA claims the exclusivity doctrine presents no bar.

Under the Workers' Compensation Act, workers' compensation is generally the exclusive remedy for injuries, including emotional distress injuries, sustained by an employee in the course of employment, and that exclusivity extends to NIED claims arising from employment decisions such as termination. (Lab. Code, §§ 3600(a), 3602(a); *Singh v. Southland Stone* (2010) 186 Cal.App.4th 338, 365; *Robomatic, Inc. v. Vetco Offshore* (1990) 225 Cal.App.3d 270, 272.)

Here, Plaintiff's NIED cause of action, as pleaded, fails to identify any duty independent of the employment relationship. The claim incorporates by reference all preceding allegations and rests on the theory that Ross knew of Plaintiff's medical condition and terminated her anyway. (Compl. ¶¶ 34–36.) That describes conduct governed by the employment relationship and by FEHA, not a distinct duty of care. Plaintiff's Opposition does not point to any allegation supplying an independent duty.

On exclusivity, the authorities recognizing an exception for discrimination based emotional distress claims have generally involved intentional conduct implicating fundamental public policy, not negligence, and Plaintiff cites no authority suggesting that a negligence based emotional

distress claim arising from ordinary employment decisions survives workers' compensation exclusivity.

The demurrer therefore is **SUSTAINED WITH LEAVE TO AMEND** on the independent duty and workers' compensation exclusivity grounds.

c. Futility of Amendment

Ross argues that leave to amend should be denied as futile because Plaintiff's tolling theory and her NIED claim are mutually exclusive: her equitable tolling argument assumes the workers' compensation proceeding was an alternative remedy for the same emotional distress injuries underlying her NIED claim. If that assumption is correct, exclusivity bars the claim, and if it is not, the workers' compensation proceeding was not an alternative remedy and cannot support equitable tolling.

The argument has force, but at the pleading stage the Court cannot conclude that no set of amended allegations could reconcile the two theories. Plaintiff may be able to plead facts distinguishing the emotional distress injuries she pursued in the WCAB proceeding from those underlying her NIED claim, or facts placing Ross's conduct within the public policy carve-out to workers' compensation exclusivity. Whether she can do so should not be resolved on demurrer.

Accordingly, the demurrer to the fifth cause of action is **SUSTAINED WITH LEAVE TO AMEND** on statute of limitations, independent-duty/standalone-tort, and workers' compensation exclusivity grounds.

Summary:

SUSTAIN Defendant's Demurrer as to the Third Cause of Action for Wrongful Termination in Violation of Public Policy, the Fourth Cause of Action for Intentional Infliction of Emotional Distress, and the Fifth Cause of Action for Negligent Infliction of Emotional Distress **with 21 days leave to amend.**